

Privacy Tradeoffs in the Digital Era

Public views on data use, monitoring, and accountability

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Core Tension

Data can protect. Data can expose.

- Identity theft: victims need records that firms and police will accept.
- Public records: transparency can reveal private life and identity trails.
- Geofence data: useful investigation can become broad location tracking.
- Audit logs: proof of misuse can create new privacy duties.

Evidence Threshold

Protection depends on limits.

- Purpose, scope, access, retention.
- Safeguards, notice, consent.
- User benefit versus user exposure.

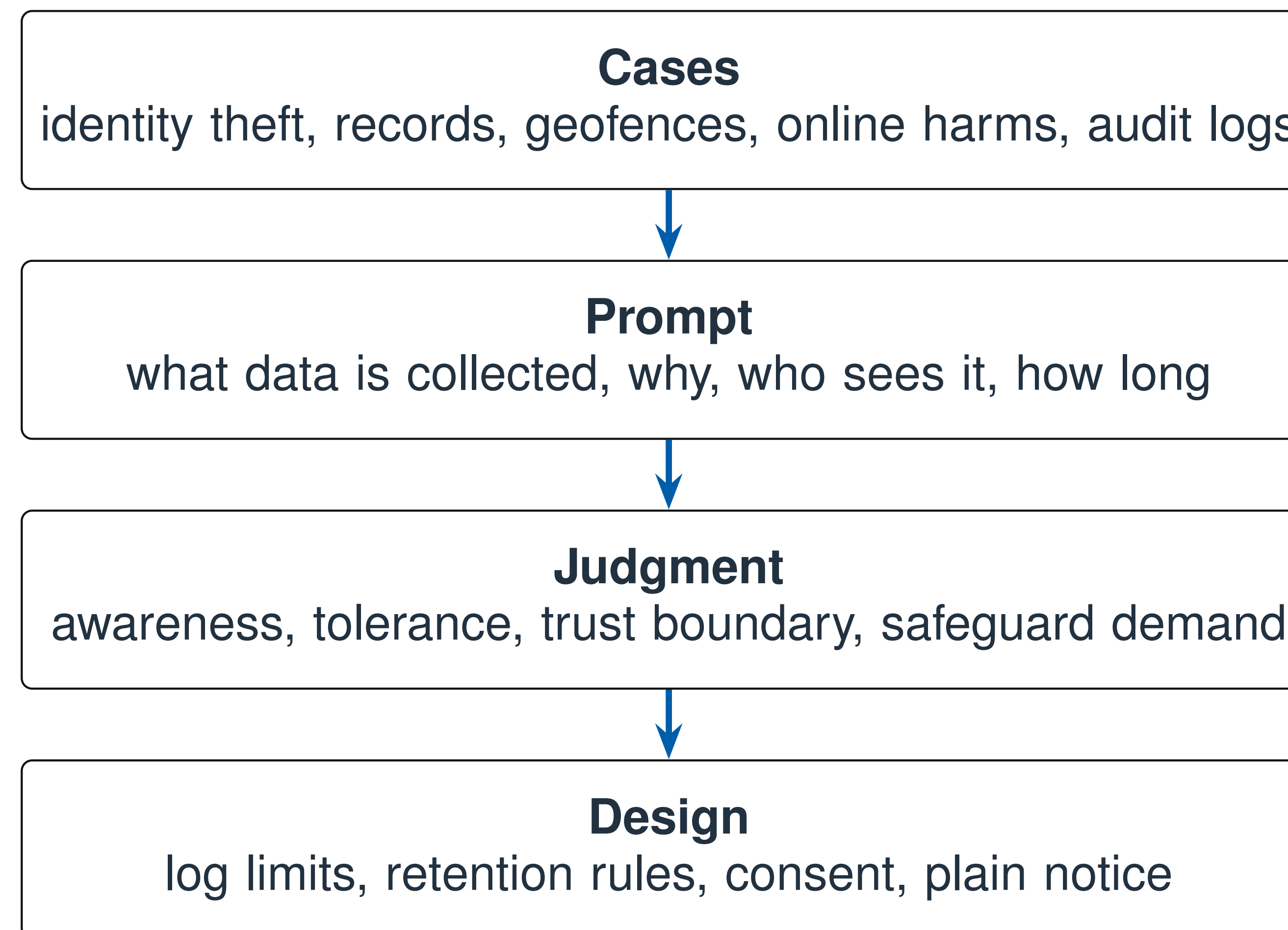
What Cases Show

- **User burden:** victims need proof; vendors and police may still reject it.
- **Legal access:** GDPR, records, and warrants set competing data rights.
- **Harm gaps:** stalking, revenge porn, and deepfakes can outpace law.
- **Audit need:** IoT and network logs show why records matter for accountability.

Implications

- Evidence needs can raise privacy risk.
- Tolerance turns on use, scope, access, time, and notice.
- Survey items test when safeguards make collection acceptable.

Case to Survey



Survey Instrument

- **Status:** IRB-approved scenario survey in design.
- **Awareness:** what users know about data as evidence.
- **Tolerance:** which purposes and safeguards feel acceptable.
- **Design:** how public views should shape logs, audits, notices, and teaching.

Measures

- **Awareness:** logs, records, legal access, evidentiary value.
- **Tolerance:** purpose, harm, safeguards, retention time.
- **Trust:** user, platform, employer, vendor, state.
- **Background:** tech skill, legal knowledge, demographics.

Contribution

- Builds a case-based privacy-accountability map.
- Gives concrete survey items for feedback and refinement.
- Shows a gap: tolerance is rarely measured across legal, user, and technical domains.
- Turns cases into survey items and later audit, notice, and education design.

Scenario Families

- **Identity theft:** victim evidence, vendor response, police action.
- **Location:** useful search or broad location dragnet.
- **Public records:** transparency or unwanted exposure.
- **IoT/network logs:** protection, auditability, or hidden monitoring.
- **Deepfakes/harassment:** proof needs when law lags.

Ethics Status

- CUNY Graduate Center IRB approval obtained.
- Consent before survey.
- Minimize direct identifiers.
- Treat results as exploratory unless sampling supports stronger claims.
- Use social-science input for survey design and analysis.

Next Steps

- Pick first case families for the pilot.
- Separate awareness from tolerance.
- Vary safeguards, time, access, and notice.
- Pilot plain wording with non-technical users.

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